The Second Monopoly

What the Constitution said. What the Supreme Court confirmed. What post-1970 regulations did anyway.

"The Original US Constitution — Article I, Section 8, Clause 8"

To promote the Progress of Science and useful Arts, by securing for limited Times to Authors and Inventors the exclusive Right to their respective Writings and Discoveries.

The Second Monopoly

The Patent Expired. The Exclusion Didn't — and It Doubled the Cost of American Living.
(formerly titled The Forgotten Half of the Patent Clause)

A constitutional-law litigation strategy and a citizen's playbook — in one book.

by Roleigh Martin

An invitation to attorneys — and to readers who know one — to review a constitutional argument being prepared for federal court.

What the book argues

Article I, Section 8, Clause 8 lets Congress grant inventors exclusive rights, but only "for limited Times." When a patent expires, the right to make, copy, and improve the invention passes to the public. That is the bargain: a temporary monopoly in exchange for a permanent public domain, affirmed by the Supreme Court across more than a century of unbroken precedent.

Beginning around 1970, federal energy and safety agencies — the EPA, NHTSA, and the Department of Energy — built a regulatory wall around that bargain. They did not repeal the public's right to remanufacture a patent-expired tractor, pickup, furnace, or semi-truck; they wrote rules — a documented regulatory ratchet and a statutory anti-backsliding mechanism, neither granting a grandfather exemption for remanufactured patent-expired products — that make it impossible to

lawfully build and sell one. The core technology is legally free. No one can lawfully build it. The book's claim is that the words "limited Times" have, in practical effect, been removed from the Constitution by federal regulation, without an amendment and without a vote — and that the remedy lies in a single federal courtroom, on two constitutional prongs: the Patent Clause and the Takings Clause.

No federal court has ever ruled on the question. It is a question of first impression. The book is the public-facing brief for the litigant who eventually files it.

Two documents give the fastest route in: which lays out the problem in plain language, and which shows what the book contains and how the argument is built. Chapter One, "Four Problems, One Remedy," and the Book's Brief.

About the author — and why a non-lawyer wrote it

I am not an attorney, and the fair question any careful lawyer will ask is whether a non-lawyer can be trusted to handle a constitutional argument responsibly. The record I can offer:

- Co-inventor of U.S. Patent No. 5,359,509 — the AdjudiPro® AI claims-adjudication system, which entered the Smithsonian's permanent collection in 1996. I have lived inside the patent system as a named inventor, not merely read about it.
- A retired Fortune 25 systems analyst (Optum / UnitedHealth Group). M.A., Sociology, 1977, University of Northern Iowa, emphasizing survey research.
- Author of more than 111 long-form articles — 39 of them on the Patent Clause, drawing more than 1.7 million impressions on their own, out of more than 7.9 million across all of them. The argument has been developed in public, tested against readers, and refined over many months.
- The manuscript has already been read by practicing attorneys and red-teamed by a former federal regulatory lawyer; the argument cites each authority only for what it holds, and flags every inference as the book's own.
- Founder of the Make American Living Affordable (MALA) movement — a community of more than 115,000 on X.com.

The hallucination worry deserves its own answer. Forty-two document files lie beneath my draft, carrying 1,088 saved versions as of 9 September. Every one is a man deciding what to keep, what to cut, and what to rewrite. Every authority in the book was opened

and read. The tools were not ghost-writers; they were a small newsroom. One drafted prose and edited structure. OpenCase checked citations against the authoritative federal record and twice flagged circuit-court conflicts my own synthesis had missed. Others retrieved sources, read material the rest could not reach, and audited the drafts against one another, chapter by chapter. The patent above is an AI system, so I came to these tools knowing both where they fail and how to check what they produce. The remedy for hallucination is not to put the tool down. It is to verify the assertion, read the citation, and edit hard.

Chapter 28 — Reason the argument yourself

One chapter is built precisely for a skeptical reader. "Reason the Constitutional Argument Yourself: The Open-Book Examination" hands you the primary materials — the Supreme Court holdings, the regulatory facts, the statutory and regulatory authority, and both advocates' cases — and invites you to put the question to an artificial-intelligence language model and judge the reasoning for yourself.

Eleven independent AI models, reasoning from those materials, converged on a finding that a cognizable injury exists. They decide nothing — only a court can — but the convergence is offered as one more thing a reader can weigh, and verify, without taking my word for any of it.

The chapter, the examination materials, the prompts, the scoring sheet, and the full record of the eleven models' replies are all available here:

- The exam materials — the examination as a PDF or Word file, the scoring sheet, and how to run it yourself.
- The full exam chapter — the holdings, the diagrams, the standards tables, the seven prompts, and the scoring.
- Appendix C — the eleven models' complete replies, each model's full reasoning, with a link to its own session.
- Appendix A — the SCOTUS Case Master Table endorsement: each model's full reasoning, with a link every Supreme Court case cited in the book, sorted by decision year, each described for what it actually holds. Inclusion is not Appendix A an endorsement — the cases that cut against the argument are in there too, and say so.
- The complete endnotes, glossary & key -terms apparatus — every citation with a live source link.

The request

If you are an attorney

As I move toward publishers, the recurring question is whether a non-lawyer can be trusted to handle the constitutional argument responsibly. A few words from a lawyer would settle that better than anything I could say myself. If, after your review, you are comfortable doing so, would you be willing to write a brief paragraph — two or three sentences — stating simply that the work is well-researched and merits serious consideration and a public hearing?

I am asking only for that — a statement of seriousness, not agreement with my conclusions. If you find it warrants more, you are of course free to say so, but there is no expectation. Entirely your own words, reflecting only what you can honestly stand behind.

The chapter, "Reason the Constitutional Argument Yourself," and the exam materials above are the efficient place to start — they let you test the core of the argument quickly. The full manuscript is there for whoever wishes to go deeper. Any attorney who contacts me can receive the complete Author's Review manuscript for their review — as a PDF, as a printed trade paperback (available at cost, including shipping), or as an EPUB — whichever suits how you prefer to read.

If you know an attorney

If this argument belongs in front of someone you know who practices law, I would be grateful if you would pass it along.

To reach me, or to send a paragraph

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Articles introducing the argument:

The Constitutional Violation No One Reports: Who Profits from Blocking Expired-Patent Competition?
x.com/RoleighMartin/status/2023078933416071558

The Forgotten Half of the Patent Clause: What was Promised When Patents Expired
x.com/RoleighMartin/status/2042726307931287738

Why Wealthy Nations Break the Patent Promise That Poor Nations Honor
x.com/RoleighMartin/status/2033229378738393474

Restore Patent Rights & Cut Living Costs: Free App, Your Governor or State AG, One Letter
x.com/RoleighMartin/status/2034110541896073495

How Expired Bicycle Patents Made Two Wheels Affordable & Why Cars Became Less Affordable
x.com/RoleighMartin/status/2026872195662709207

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